

a ground for immunity from suit even though the vessel was not in the possession and public service of that government. Ever since *The Exchange*, 7 Cranch 116, this Government has recognized such immunity from suit, of a vessel in the possession and service of a friendly foreign government, *L'Invincible*, 1 Wheat. 238, 252; *The Divina Pastora*, 4 Wheat. 52, 64; *United States v. Cornell Steamboat Co.*, 202 U. S. 184, 190; *Ex parte Muir*, 254 U. S. 522, 531-533; *The Pesaro*, 255 U. S. 216, 219; *Ex parte New York*, 256 U. S. 503, 510; *Compania Espanola v. The Navemar*, *supra*, 74; *Ex parte Peru*, 318 U. S. 578, 588, a practice which seems to have been followed without serious difficulties to the courts or embarrassment to the executive branch of the government. And in *The Exchange*, Chief Justice Marshall introduced the practice, since followed in the federal courts, that their jurisdiction in rem acquired by the judicial seizure of the vessel of a friendly foreign government, will be surrendered on recognition, allowance and certification of the asserted immunity by the political branch of the government charged with the conduct of foreign affairs when its certificate to that effect is presented to the court by the Attorney General. *United States v. Lee*, 106 U. S. 196, 209; *Ex parte Muir*, *supra*, 533; *The Pesaro*, *supra*, 217; *Compania Espanola v. The Navemar*, *supra*, 74; *Ex parte Peru*, *supra*, 588. This practice is founded upon the policy recognized both by the Department of State and the courts that the national interests will be best served when controversies growing out of the judicial seizure of vessels of friendly foreign governments are adjusted through diplomatic channels rather than by the compulsion of judicial proceedings. *Compania Espanola v. The Navemar*, *supra*; *Ex parte Peru*, *supra*.

In the absence of recognition of the claimed immunity by the political branch of the government, the courts may decide for themselves whether all the requisites of immu-